BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,

PRINCIPAL BENCH

NEW DELHI

Company Application No.CA (CAA)171/PB/2018

Judgment dated:

Coram:

CHIEF JUSTICE (Rtd.) SHRI M.M. KUMAR,

HON'BLE PRESIDENT

&

MR. S.K. MOHAPATRA,

MEMBER (TECHNICAL)

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

1. **ANKUR BUILDTECH PRIVATE LIMITED**

Having Registered Office at:

D-68, Hauz Khas,

New Delhi-110016

..... Applicant Company No. 1 / Transferor Company

GANESH CONTRACTORS AND COLONISERS PRIVATE LIMITED

Having Registered Office at:

D-68, Hauz Khas,

New Delhi-110016

..... Applicant Company No. 2 / Transferor Company No. 2

GANESH PROMOTERS PRIVATE LIMITED

Having Registered Office at:

131, Moti Bazar, Chandni Chowk

New Delhi-110006

.....Applicant Company No. 3 / Transferor Company No.3

GROVY INDIA LIMITED

Having Registered Office at:

22, 1st Floor, Vinobapuri, Lajpat Nagar, Part II

New Delhi-110024

..... Applicant Company No. 4 / Transferee Company

For the Applicants: Suman Kumar Jha & Afnaan Siddiqui, Advocates

ORDER

M.M. KUMAR, PRESIDENT

1. This is an application filed by the applicant companies under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (for brevity 'The Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'The Rules') in relation to the Scheme of Amalgamation (for brevity the "SCHEME") proposed amongst the applicants. The said Scheme is also annexed [Annexure "A-1"]. In terms of Sections 230 and 232 of the 2013 Act following prayers have been made for orders:-

a) Allow this application.

b) Dispensation with holding of meetings of equity shareholders of the Applicant Company No. 1.

c) Dispensation with holding of meetings of equity shareholders of the Applicant Company No. 2.

d) Dispensation with holding of meetings of equity shareholders of the Applicant Company No. 3.

e) Dispensation with holding of meetings of unsecured creditors of the Applicant Company No. 4.

f) Direct convening of meeting of Equity Shareholders of Applicant Company No. 4.

g) Pass any such further as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case."

2. An affidavit in support of the application sworn for and on behalf of the Applicant Company 1, & 3 has been filed by one Mr. Raj Kumar Jalan, and on behalf of the Applicant Company No.4 has been filed by Mr. Nishith Jalan being the authorized representatives.

3. It is represented that the Scheme does not contemplate any corporate debt restructuring exercise as contemplated under Section 230(2) of the Act. Learned Counsel has taken us through the averments made in the application as well as the typed set of documents annexed there with. It is further represented that the application filed by the applicants is maintainable in view of Rule 3(2) of the Rules and Learned Counsel also represented that the registered offices of all the applicant companies are situated within the territorial jurisdiction of this Tribunal and fall within domain of Registrar of Companies, NCT, New Delhi.

4. In relation to the Transferor/ Applicant Company No. 1 it has been represented that company has **6** Equity Shareholders. We are further apprised that the Transferor / Applicant Company No.1 has no Secured Creditor Unsecured Creditor. All the shareholders have filed their consents by way of affidavits. In relation to the Shareholders Transferor / Applicant Company No. 1 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

5. In relation to the Transferor/ Applicant Company No. 2 it has been represented that company has **11** Equity Shareholders. We are further apprised that the Transferor / Applicant Company No.1 has no Secured Creditor & no Unsecured Creditor. All the shareholders have filed their consents by way of affidavits. In relation to the Shareholders, Transferor / Applicant Company No. 2 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

6. In relation to the Transferor/ Applicant Company No. 3 it has been represented that company has **10** Equity Shareholders. We are further apprised that the Transferor / Applicant Company No.1 has no Secured Creditor & no Unsecured Creditor. All the shareholders have filed their consents by way of affidavits. In relation to the Shareholders, Transferor / Applicant Company No. 3 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

7. In relation to the Transferee/ Applicant Company No. 4, it has been represented that company has **91** Shareholders. We are further apprised that the Transferee / Applicant Company No.4 has **no** Secured and **12** Unsecured Creditors. Consent- affidavits from all the unsecured creditors have already been placed on record. In relation to the Shareholders Transferee / Applicant

Company No. 4 seeks a direction for convening and holding of meeting for the purpose of obtaining their approval to the proposed Scheme.

8. The above application has been placed before us and this Tribunal proceeds to entertain the same. The registered offices of all the applicant companies are situated within New Delhi which are subject to the territorial jurisdiction of Registrar of Companies, NCT, New Delhi as well as that of this Tribunal.

9. We have perused the application and the connected documents filed along with the Scheme of Amalgamation contemplated between the Applicant Companies.

10. Applicant Company No. 1 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 01.04.2004 under the name "*Ankur Buildtech Private Limited*". The authorised share capital of the Transferor Company is Rs 10,00,000 only divided into 10,000 equity shares of Rs. 100 each. The issued, subscribed and paid-up share capital of the Company is Rs 10,00,000 only divided into 10,000 equity shares of Rs. 100 each.

11. Applicant Company No. 2 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 15.03.1995 under the name "*Ganesh Contractors and Colonisers Private Limited*". The authorised share capital of the Transferor Company is Rs 2,00,00,000 only divided into 20,00,000 equity

shares of Rs. 10 each. The issued, subscribed and paid-up share capital of the Company is Rs. 2,00,00,000 only divided into 20,00,000 equity shares of Rs. 10 each.

12. Applicant Company No. 3 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 17.08.1998 under the name "*Ganesh Promoters Private Limited*". The authorised share capital of the Transferor Company is Rs 1,80,00,000 only divided into 18,00,000 equity shares of Rs. 10 each. The issued, subscribed and paid-up share capital of the Company is Rs 1,80,00,000 only divided into 18,00,000 equity shares of Rs. 10 each.

13. Applicant Company No. 4 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 23.07.1985 under the name "*Grovy India Limited*". The authorised share capital of the Transferee Company is Rs. 1,50,00,000, divided into 15,00,000 equity shares of Rs. Ten each. The issued, subscribed and paid-up share capital of the Company is Rs. 1,40,00,000 divided into 14,00,000 equity shares of Rs Ten each.

14. The Board of Directors of the Companies vide meetings held on 14.02.2018 have unanimously passed resolutions and approved the proposed Scheme of Amalgamation as contemplated above and copies of resolutions have also been placed on record by the Companies.

15. Taking into consideration the application and the documents filed therewith, we propose to issue the following directions with respect to calling, convening and holding of the meetings of the Shareholders, Secured and Unsecured Creditors or dispensing with the same which are as follows:-

A. In relation to the Applicant No. 1/ Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant No. 1 that there are 6 Shareholders in the Company whose consent-affidavits have already been placed on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 1 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant No. 1 that there is no Unsecured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

B. In relation to the Applicant No. 2/ Transferor Company No. 2:

i. With respect to Shareholders:

It is represented by the Applicant No. 2 that there are 11 Shareholders in the Company whose consent-affidavits have already been placed on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 2 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant No. 2 that there is no Unsecured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

C. In relation to the Applicant No. 3/ Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant No. 3 that there are 10 Shareholders in the Company whose consent-affidavits have already been placed on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 3 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant No. 3 that there is no Unsecured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

D. In relation to the Applicant No. 4/ Transferee Company:

i. With respect to Shareholders:

Since it is represented by the Applicant No. 4 that there are 91 Shareholders in the Company. Meeting be convened on 01.12.2018; at

11.30. A.M. at 122, First Floor, Vinobhapuri, Lajpat Nagar, Part II, New Delhi-110024. The Quorum of the meeting shall be **35**.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 4 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant No. 4 that there are **12** Unsecured Creditors in the Company, consents of whom have already been placed on record. Hence, the necessity of convening and holding a meeting is obviated.

E. In case the Quorum as noted above for the above meetings of the applicant companies are not present, in the meetings, then the meetings shall be adjourned for half an hour, and thereafter, the person present shall be deemed to constitute the quorum. For the purpose of computing the quorum, the valid proxies shall also be considered, if the proxy in the prescribed form, duly signed by the person entitled to attend and vote at the meeting, are duly filed

with registered office of the applicant companies at least 48 hours before the meetings. The Chairperson and the Alternate Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained.

F. Mr, Saurabh Kalia, Advocate (9810979440) is appointed as the Chairperson and Mr Inderjeet Singh, Advocate (9818285641)is appointed as Alternative Chairperson for the meetings of Applicant Companies as has been directed to be convened by this Tribunal.

G. The fee for the Chairperson for the aforesaid meetings shall be Rs. 1,00,000/- and the fee for the Alternate Chairperson shall be Rs. 50,000 in addition to meeting their incidental expenses. Mr. Vivek Goel, CA (9815522553), is appointed as a Scrutinizer and would be entitled to fee of Rs. 75,000/- for his services in addition to meeting his incidental expenses. The Chairperson will file their reports within two weeks from the date of holding of the above said meetings.

H. The individual notices of the said meetings shall be sent as required and prescribed by the Companies Act, 2013 through registered post or speed post or through courier or through e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, place and time as aforesaid,

together with a copy of scheme of arrangement, a copy of explanatory statement. The prescribed form of proxy shall be sent along with and in addition to the above documents, any other documents as may be prescribed under the Act may also be duly sent with the notice.

I. That the applicant companies shall publish advertisement with a gap of at least 30 clear days before the aforesaid meetings, indicating the day, date, place and time as aforesaid, to be published in the English Daily '**Business Standard**' (Delhi Edition) and Hindi Daily **'Jansatta'** (Delhi Edition) stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the Applicant Companies.

J. Voting shall be allowed on the proposed Scheme by voting in person or by proxy, as may be applicable to the respective companies under the Act and rules framed there under. The Chairperson shall be responsible to report the result of the meeting to this Tribunal within two weeks of the conclusion of the meeting with regard to the proposed scheme.

K. The Companies shall individually send notice to the Central Government, the Income Tax Authorities, concerned Registrar of Companies, NCT of Delhi &

Haryana, Official Liquidator, and any sectoral regulators who may have significant bearing on the operation of the applicant companies along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

L. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

The application stands allowed in the aforesaid terms.

Sd/-

(M.M. KUMAR) 17.10.2018

PRESIDENT

Sd/-

(S.K. MOHAPATRA)

MEMBER (TECHNICAL)

Pronounced today under Rule 151 of the NCLT Rules, 2016 as Shri S.K. Mohapatra, Hon'ble Member (T) is not holding court today.

Sd/-

(NIRMALA VINCENT)

COURT OFFICER

Vidya